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INDONESIA / PAPUA

Papuans displaced by military operations in the central highlands remain unassisted

Since May 2010 and particularly in May and June, an unknown number of Papuans, ranging from several hundreds to several thousands, have been reported to be internally displaced in the central highlands region of Puncak Jaya, where the government of Indonesia has been conducting counter-insurgency operations against rebels of the OPM (*Free Papua Movement*). Fleeing the army's "sweeping operations", which are often accompanied by severe human rights violations, most internally displaced people (IDPs) have taken shelter in the jungle, where they have very limited or no access to basic necessities of life including food, shelter, water and health care. Following past waves of violence, displaced Papuans living in similar conditions have faced malnutrition, disease and sometimes death.

The high level of violence and destruction carried out by the armed forces, such as the burning of homes and properties, the destruction of vegetable gardens and other means of livelihoods including livestock, makes the prospects of recovery and durable solutions poor. The recovery process is also hampered by the lack of access to basic services in these very remote places.

Lack of independent access to the conflict-affected areas in the central highlands makes it difficult to get any reliable estimates on the number of people affected by the military operations, or to assess the IDPs' humanitarian needs and to provide assistance. The government generally does not recognise people displaced by conflict in Papua as IDPs and provides no specific assistance.

Host communities and church groups are the main providers of assistance, but the church groups as well as human rights NGOs have often been viewed with suspicion by the government, which has considered some as too close to the OPM and as supporting separatism. Activities of international organisations are also limited and closely monitored. Since 2009, a number of international organisations, including ICRC and more recently Cordaid, have been banned from the Papuan provinces.

Background

Indonesia gained independence shortly after the end of World War II, but the Netherlands retained control over the western part of the island of New Guinea, then known as Dutch West Guinea. Under pressure from the international community and in particular the United States, which needed an ally in the region in its fight against communism, the Netherlands handed over control of the resource-rich colony to a transitional UN administration in 1962.

Indonesia assumed control of Papua in 1963 and started asserting its authority, mainly through military force. Estimates of the number of Papuans who died as a result of military operations by the Indonesian army between 1962 and 1969 range from several thousands to 30,000 (Drooglever, Pieter, 22 September 2010, p.3; Braithwaite, John, March 2010, p.61). This period saw the emergence of the Free Papua Movement (Organisasi Papua Merdeka or OPM), which in 2010 remains the main armed rebel group in Papua. In 1969, in the controversial UN-supervised Act of Free Choice, representatives carefully selected by the Indonesian government almost unanimously chose to join Indonesia. Papua officially became an Indonesian province known first as West Irian, then Irian Jaya, and finally Papua. In 2003, the province was divided into two smaller provinces, West Papua and Papua.

In 2001, Papua was granted "special autonomy" which entailed an increased share of the revenue generated by the exploitation of its natural resources (Jakarta Post, 19 June 2010). However, an independent assessment conducted six years later concluded that widespread corruption had prevented the special autonomy from making any positive difference to the lives of Papuans (USAID, February 2009, p.78). The extra resources do not appear to have benefited more than a small elite of corrupted government civil servants and have certainly not led to concrete social or economic programmes benefiting indigenous Papuans

(CPCS, July 2010, p.18; Braithwaite, John, March 2010, p.87). According to the International Crisis Group (ICG): "Many provisions [of the law] were implemented slowly, poorly or not at all, eroding whatever good will was generated by the law." (ICG, 11 March 2010, p.4) In August 2010, the government announced that the impact of special autonomy would be evaluated in 2011 (Jakarta Post, 1 August 2010).

Development and human security indicators in Papua are the lowest in Indonesia, with those in the displacement-affected central highlands the worst of all. Health data collected by Médecins du Monde in these areas shows that infant mortality rates are about 85-150 per 1000 live births, and maternal mortality rates are three times higher than in the rest of the country at 500-1000 per 100,000 births (Rees, Susan J.; Van de Pas, Remco; Silove, Derrick and Kareth, Moses, 2008, p.641). There is a shortage of doctors but also of medical facilities as well as essential medicines. Water and sanitation facilities are inadequate, in particular in rural areas (USAID, February 2009, p.112) The rate of HIV/AIDS was 1.0 per cent in Papua in 2008, compared to a national average of 0.17 per cent. In the central highlands, the rate was 2.9 per cent, indicating a growing HIV epidemic. According to Médecins du Monde, it may reach five per cent by 2011 (MDM, August 2010, p.3).

Access to education is also a major problem in remote areas most affected by displacement, mainly because of the shortage of schools and teachers. In Puncak Jaya regency in the central highlands, it is estimated that 49 per cent of children never attended or completed primary school (Mollet, Julius Ary 2007, p.158). Children's access to education is further limited by recurrent episodes of forced displacement and by the destruction of schools during sweeping operations (HRW, 5 July 2007, p.32).

Disillusioned with special autonomy, and facing increasing demographic, economic, social, po-

litical and military pressures, many Papuans are again pinning their hopes on independence. In June 2010, the Papuan People's Council (MRP), a body established under the special autonomy legislation to protect Papuan cultural values, made a list of recommendations to the Papua legislature which included a rejection of special autonomy, mediation from the international community, and a referendum on Papua's independence (Jakarta Globe, 30 August 2010). Developments outside Papua have also bolstered demands for independence. In June 2010, the Vanuatu parliament passed an act calling on its government to develop policies to support Papua's independence struggle. In particular, Vanuatu intends through the UN General Assembly to request an "advisory opinion" from the International Court of Justice on the legality of Indonesia's claim of sovereignty over Papua (ABC, 21 June 2010).

Causes of displacement

Indigenous Papuans have been forced from their homes in a number of ways, due to the pressure imposed on them by the economic, political and security policies of the Indonesian government. The rates of forced displacements in Papua have varied according to political tensions and the intensity of military operations.

They have fled the repressive and often disproportionate actions of a government which has not tolerated any expression of political opposition. Any resistance to Jakarta's development or political plans has been met since 1963 by repeated counter-insurgency campaigns and security measures that have often left people no choice but to flee their homes. Thousands of Papuans have sought refuge across the border in Papua New Guinea (PNG) since 1968, with large-scale movements occurring in 1977, 1984-85 and 2000-01. As of 2010, it is estimated that 10,000 Papuan refugees remain in PNG, most of them living in about 20 remote settlements along the Indonesia-

PNG border and in the East Awin's settlement established further away from the border in 1987. Those displaced in border settlements, some of which are officially located on the Indonesian side, lack any official status but are generally protected against *refoulement* (JRS, April 2009, p.8; RNZI, 25 June 2010).

Development projects and related inward migration

Development projects have caused displacement directly, and have also caused conflict between the armed forces charged with the security of the projects and the indigenous people affected by them. Many indigenous Papuans have been evicted from their lands, often without any compensation, by mining or logging companies.

A USAID assessment noted that: "Decision making in relation to land and natural resources favours the attraction of investment for development rather than protection of customary ownership." (USAID, February 2009, p.107) There is currently no clear framework for dealing with customary land rights or land certificates and most indigenous people have no understanding of their rights (ICG, 19 July 2007, p.5).

Resource-rich Papua has since 1963 provided huge revenues for the Indonesian government and in particular for the armed forces, who have seized the revenue opportunities provided by illegal logging and security needs of multinational mining companies such as the US-based Freeport McMoRan Copper & Gold (Freeport). Since 1967, Freeport has been reported to take land away from indigenous people without any consultation and forcibly resettle them with little if any compensation (Braithwaite, John, March 2010, p.71). Freeport is currently exploiting the Grasberg mine in the Timika area, which is reported to have caused considerable environmental degradation, the massive displacement of the indigenous Amungme and Komoro peoples, and the destruction of their economies and livelihoods. Following riots in 1996, Freeport set up a community devel-

opment fund aimed at improving local people's standard of living. The fund is, however, reported to have caused social disharmony and fuelled conflict between local tribes competing to access it (NYT, 27 December 2005; Heidbüchel, Esther, 2007, p. 152).

Freeport has reportedly become a major driver of conflict, not only by displacing, dispossessing and impoverishing local communities, but also by ensuring security by providing revenue opportunities to the armed forces which have no interest in a conflict-free environment (Braithwaite, John, March 2010, p.71). Freeport has been targeted in several attacks, generally attributed to Papuan separatists. However, some of these attacks have been linked to a rivalry between the police and the armed forces who are competing for lucrative security contracts (Braithwaite, John, March 2010, p.69; Jakarta Post, 26 January 2010; Reuters, 16 July 2009, BBC, 14 July 2009). The armed forces were replaced by the police as provider of Freeport's security following a shooting incident in 2002, but put back in charge after another shooting incident resulted in the death of an Australian Freeport employee in July 2009 (ICG, 11 March 2010, p.19).

Tensions have also been high between indigenous Papuans and settlers from other regions of Indonesia. The influx of settlers attracted by Papua's economic opportunities has compounded competition for land, with the establishment of settlements resulting in the eviction of indigenous Papuans from their land. Indigenous groups displaced by development projects have viewed settlers as an additional threat to the sustainability of their livelihoods, culture and identity. They have also resented the hiring of outsiders in the plantations and mines.

While government-sponsored transmigration of settlers from other regions ceased at the end of the 1990s, spontaneous migration continued unabated. The percentage of migrants rose from

only four per cent in 1970 to 35 per cent in 2000; it is expected to reach 50 per cent in 2011 (USAID, 20 February 2009, p.37). The relationship between Indonesian migrants and indigenous Papuans, who also have diverging views on the province's autonomy, has reportedly deteriorated in the past years. During 2010, in several incidents, migrants were attacked and killed by Papuans (IRIN, 13 August 2010; ICG, 16 June 2008, p.1).

Counter-insurgency and human rights violations in the central highlands

The OPM has waged low-level warfare against the security forces since the 1960s, but has a very limited number of fighters and represents no significant military threat. During the 1970s and 1980s counter-insurgency campaigns against the OPM and villages suspected of supporting it resulted in large-scale human rights violations including extrajudicial killings, torture and rape, and also forced displacement (HRW, 5 July 2007, pp.11-12).

In its fight against the OPM, the Indonesian army has reportedly sought to cut support to the rebels by subjecting communities to physical abuse, burning of homes and properties, and destruction of means of livelihoods including vegetable gardens and livestock. There is reportedly little distinction between villagers and OPM rebels and supporters during counter-insurgency operations (RSC, September 2007, p.49). In 2007, HRW documented a number of cases of extrajudicial killings committed by the police and the armed forces during their counter-insurgency operations, as well as other abuses including sexual violence against women and girls, including rapes (HRW, 5 July 2007, pp.4-5).

Following a visit to Indonesia in November 2007, the UN Special Rapporteur on torture and other cruel, inhuman or degrading treatment or punishment expressed serious concern about credible allegations of the use of excessive force by BRIMOB mobile paramilitary units which "have routinely been engaging in largely indiscriminate

village ‘sweeping’ operations in search of alleged independence activists and their supporters, or raids on university boarding houses, using excessive force” (UN SR, 10 March 2008, p.15).

The Special Rapporteur also noted with concern the “quasi-total impunity” enjoyed by security forces and the limited information available due to travel restrictions (UN SR, 10 March 2008, p.15). The TNI and in particular its elite Kopassus special force, which has been held responsible for numerous human rights violations since the 1990s in East Timor and Aceh, are reported to enjoy near-total impunity in Papua. According to HRW, which documented numerous violations committed by Kopassus soldiers against Papuans in Merauke town in 2009, “a lack of accountability is still the norm” (HRW, 24 June 2009, p.2). With regards to units operating in the central highlands, HRW noted that “brutality is still all too common among soldiers” and that they often “feel confident that they are above the law” (HRW, 5 July 2007, p.52).

Since 2009, military operations in the central highlands have reportedly continued to be accompanied by human rights violations. In June 2009, sweeping operations by BRIMOB units in Puncak Jaya which resulted in forced displacement reportedly also involved a number of other human rights violations, including extrajudicial killings, burning of homes and livestock, kidnapping and raping of seven girls (WPAT, June 2009). More recently, in May and June 2010, BRIMOB and TNI reportedly killed two civilians, raping a pregnant woman, burning houses and churches, killing all livestock in three villages and forcing civilians to work for them (WPAT, 30 June 2010, pp.1-2, WPAT, 31 May 2010, p.2).

In January 2010, the national human rights commission Komnas HAM reported a “drastic decline” in the human rights situation in Papua. According to Komnas HAM, as a result of the military operations conducted in the region since 2004: “...The people there are traumatised and unable to carry on with their activities, with some of them leaving

the area in search of tranquility elsewhere.” (West Papua Media Alerts, 11 August 2010)

According to ICG, much of the new violence is the result of the radicalisation of a group of students from the central highlands, the West Papua National Committee (KNPB), who have rejected any unmediated dialogue with the Indonesian government and turned to violence as a means to achieve their objective of a referendum on independence (ICG, 11 March 2010, p.i). This view has been disputed by the Centre for Peace and Conflict Studies of the University of Sydney, which in a report published in July 2010 describes the KNPB as radical in its ambitions for Papua’s independence, but peaceful in the means it uses and advocates. The report denounces ICG’s report as having encouraged the army’s sweeping operations in the central highlands by strengthening “the Indonesian government position that they are fighting violent guerrillas in West Papua rather than a legitimate, popularly-backed resistance movement” while ignoring the consequences of these operations on the civilian population (CPCS, July 2010, pp.3-25). According to ICG, reports of the impacts of security operations have sometimes been exaggerated (ICG, 11 March 2010, p.13).

IDP population figures and displacement patterns

The lack of access of international or independent observers to the conflict-affected areas, mainly in the central highlands, has made it difficult to assess the number of internally displaced people (IDPs) and their needs (HRW, 5 July 2007, p.32). Between 2001 and 2007, counter-insurgency operations by security forces are believed to have displaced at least 20,000 people, mainly in Puncak Jaya but also in other places such as Wasior (Chauvel, Richard, 2008, p.170). The current number of IDPs is unknown but available information suggests that since 2009, displacement incidents caused by military operations in the central highlands, and in

particular Puncak Jaya regency, have been on the increase. These operations are reported to have resulted in the displacement of several thousands of people (WPAT, 30 June 2010, February 2009).

The most recent displacements were reported between May and June 2010 as a result of new military sweeping operations in the central highlands (WPAT, July 2010, p.1). According to a consultant for Human Rights Watch, people in Puncak Jaya terrorised by the army's operations fled threats of torture and the destruction of their houses (RNZI, 15 June 2010). The operations reportedly resulted in the displacement of "a large number of civilians" who fled their homes to seek refuge in other villages, towns or in the forest. It was estimated that "thousands of people" were hiding in the forests. More specifically, villagers from Yambi, Agandugume and Ilala Peak were reported to have fled to Majesty Towogi district. Some civilians from Tingginambut district sought refuge in the forests while others went to Kuyawagiastir, Tiom and Lani in Jaya district (WPAT, 30 June 2010, pp.1-2). As of September 2010, several hundreds of people were reportedly still hiding in the jungle (Greenleft, 19 September 2010).

Compared to the relatively low intensity of the conflict, the number of people displaced has been important. This is mainly explained by "the disproportionate nature of the military response with sweeping operations often failing to distinguish between civilians and OPM militants" (Chauvel, Richard, 2008, p. 170). Internal displacement has also tended to persist long after the conflicts or military operations have ended. Up to 16,000 people displaced in 2005 had not returned as of March 2007 (PBI, March 2007). A majority of the estimated 5,000 people displaced in June 2001 by military sweeping operations in Wasior had not returned to their homes more than a year and a half later (Chauvel, Richard, 2008, p.164).

Displacement has also been caused by tribes clashing for various reasons. In May 2010, an un-

known number of people fled their homes in the Timika region due to clashes between rival tribes. The people displaced sought refuge in a nearby Indonesian Air Force base (Jakarta Globe, 24 May 2010, Jakarta Post, 25 May 2010).

Physical security and access to basic necessities of IDPs

When fleeing military operations and related violations, many IDPs have sought shelter for weeks or months in the jungle or the mountains until they feel it is safe to return. There, the displaced are reported to be struggling to survive, with no or very limited access to basic necessities of life such as food, drinking water, clothing, housing and health care. Some form of assistance is sometimes provided by host communities or local authorities, but the security forces have also at times been reported to prevent assistance from reaching the displaced.

Although there is little information available on the condition and needs of those displaced in Puncak Jaya in May and June 2010, it is believed that most are denied access to food, water, shelter and health care. Their inadequate living conditions are putting them at severe risk of malnutrition, disease and possibly death.

Over the years, hundreds of IDPs have reportedly died while in displacement as a result of starvation, lack of medical assistance to treat injuries or diseases. Lack of independent access makes it difficult to reliably estimate the number of deaths (HRW, 5 July 2007, p. 32). In June 2009, it was reported that an unknown number of IDPs who had sought refuge in the jungle had died due to a lack of food and access to medical care (WPAT, 22 July 2009). At least 2,000 out of the 5,000 people who fled their homes in Puncak Jaya in December 2006 were still unable to return three months later. Deprived of any assistance, at least four IDPs had reportedly died due to lack of food and medical as-

sistance (ECPC, 29 January 2007; ABC, 19 February 2007). Out of the estimated 20,000 people who fled their homes in mid-2004 following counter-insurgency operations in Puncak Jaya, 6,000 were reported to have remained displaced five months later living in desperate conditions, short of food and medicine. A total of 78 IDPs reportedly died due to starvation or illness (Chauvel, Richard, 2008, p. 167; Elsham News Service, 21 December 2004; AI, 6 December 2004). One year earlier, 42 people were reported to have died in makeshift camps set up in the jungle near Wamena following a police attack on 25 villages suspected of harbouring suspects of an attack on a police arsenal in Wamena (Chauvel, Richard, 2008, 165).

Prospects for durable solutions

The high level of violence and destruction by the armed forces, combined with the lack of assistance offered to the displaced, makes the prospects of recovery and durable solutions poor.

IDPs have been forced into hiding to avoid extrajudicial killings and other violations of their rights. Checkpoints, roadblocks and the recurrent “sweeping” operations have also violated the freedom of movement of civilians including IDPs. When people have finally returned home, often months after being initially displaced, they have received little or no support from the government (HRW, 5 July 2007, pp. 30-34). Most of the time, no reparation or compensation has been offered, nor any assistance to rebuild homes and restart a livelihood.

The recovery process is also hampered by the lack of access to basic services in these very remote places. A mission by the Office of Justice and Peace (SKP) at the end of 2008 in Kwiyawage sub-district, Puncak Jaya, to assist people displaced by military operations in 2003 who had managed to return six months later, showed that their nutritional status appeared to be good, but that they

had very little access to medical care. There was no doctor in the sub-district and the only health facility serving the community had insufficient medicine supplies. Other issues of concern were the lack of potable water and sub-standard sanitation facilities. Local authorities offered financial assistance amounting to \$85 (Rp.700,000) per family to a number of returnees (SKP, 25 November 2008).

National response

The security forces and the government do not generally recognise people displaced by conflict in the Papuan provinces as IDPs, and so the government fails to recognise its obligations towards IDPs under international humanitarian and human rights law (RSC, September 2007, p.12). Government access restrictions to the areas affected by conflict and displacement have made it difficult for independent monitors and agencies to assess the humanitarian needs of the displaced people and provide assistance (RFK Center for Human Rights, March 2005).

Most of the assistance to IDPs is provided by host communities, church associations and sometimes local authorities, who generally lack sufficient resources. In May 2009, the head of Puncak Jaya regency criticised the security operations for putting too much of a strain on the regency’s budget, because of the costs of the logistical support to the operations but also because funds were needed to assist people displaced as a result of these operations (ICG, 11 March 2010).

Security forces have reportedly at times prevented assistance reaching the displaced or have used it for themselves (Chauvel, Richard, 2008, p. 170; WPAT, 31 May 2010, p.2). The armed forces have also tried to prevent assistance from being delivered to IDPs by denying or playing down the consequences of military operations. When in early 2007 church officials reported that up to 5,000 people had fled their homes in Puncak Jaya

and that a large number were in need of humanitarian assistance, local government officials promised to assist people to return and provide food assistance (ECPC, 29 January 2007). However, the military commander accused the church officials of lying and said humanitarian assistance would only be provided if the claims were proved to be true (Jakarta Post, 2 February 2007). In 2005, church groups in Papua accused the security forces of using money allocated to development and humanitarian programmes to finance military operations (The Age, 16 March 2005).

A number of actors have advocated that the government shift from the current military strategy to a genuine dialogue with Papuans, and pay greater attention to issues of human rights and social justice. In August 2010, Komnas HAM and Papuan church leaders urged the security forces to end military operations in Puncak Jaya (Jakarta Post, 18 August 2010). Through their presence in remote areas, church groups are often the only parties able to document and report on violations and displacement incidents. For the security forces, church and human rights groups and OPM are seen as closely linked and all are considered as in favour of separatism (Chauvel, Richard, 2008, p. 171; Braithwaite, John, March 2010, p. 125). As a result, Indonesia-based human rights organisations present in Papua are frequently harassed and victims of intimidation by the security forces (RSC, September 2007, p.11). In May 2010, the Puncak Jaya head of regency publicly criticised unnamed “domestic as well as foreign” NGOs for supporting OPM (WPAT, 31 May 2010, p.2).

International response

Following an assessment conducted in Papua in 2005, which noted widening social disparities and growing tensions between the local population and settlers with a risk of increasing the potential for conflict, UNDP and UNICEF started implementing a number of programmes focusing mainly on

health, education, nutrition and broader development issues (UNDP, August 2005, p.2).

A number of international organisations are present in the two Papua provinces providing development assistance and working on improving Papuan’s access to basic services but, with the exception of Médecins du Monde (MdM) which has been present since 1998, none is conducting operations in the central highlands where access remains extremely limited (MdM, August 2010).

Since 2009, the Indonesian government has sent strong signals that it is further tightening control on international organisations present in Papua. In April 2009, ICRC was ordered to close its office in Jayapura, Papua. According to the government, ICRC’s office was “illegal” as the organisation lacked the proper documentation (Jakarta Post, 25 April 2009). In September 2010, the government refused to extend Cordaid’s authorisation to work in Papua on the suspicion that it was supporting separatism (RNZI, 10 September 2010). Cordaid had been present in Papua for nearly 30 years.

The issue of violence in the Papuan provinces has recently gained visibility in the United States. Following the U.S. government’s decision in July 2010 to resume military assistance to Indonesia’s Kopassus special forces after a ten-year ban, a move which was described by HRW as “...a victory for abusive military worldwide”, 50 members of Congress signed a petition calling on the Obama administration to make Papua a priority (ETAN, 1 August 2010; HRW, 22 July 2010). In September 2010, the U.S. Congress’s Committee on Foreign Affairs organised the first ever hearing on the situation in Papua entitled “Crimes Against Humanity: When Will Indonesia’s Military Be Held Accountable for Deliberate and Systematic Abuses in West Papua?” (U.S. Congress, 27 September 2010).

Note: This is a summary of IDMC’s internal displacement profile on Papua, Indonesia. The full profile is available online [here](#).